

The Court finds that Plaintiff has failed to meet her burden under CRC Rule 3.1700(b)(2) and 612 S. LLC to identify specific items and demonstrate that each challenged cost is improper, unnecessary, or unreasonable. Plaintiff's objections are conclusory and unsupported by competent evidence. Defendant's verified Memorandum of Costs constitutes *prima facie* evidence of the necessity and reasonableness of the claimed costs, which Plaintiff has not overcome.

Ruling

1. Plaintiff's Motion to Tax Costs is **denied** in its entirety.
2. Defendant Ekso Bionics, Inc. is awarded costs in the total amount of \$25,968.32 as claimed in its Memorandum of Costs filed November 24, 2025.
3. Each party shall bear their own costs and fees incurred in connection with this motion.

8. 9:00 AM CASE NUMBER: C23-00908
CASE NAME: ABDO NASSER VS. DOES 1 TO 50
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF T-MOBILE WEST LLC
FILED BY: MW CELL REIT 1 LLC
TENTATIVE RULING:

The hearing on MW Cell's Demurrer is **continued to November 25, 2026**, to be heard in concurrently with Cross-Defendants Abdo Nasser and Raja Nasser's Demurrer and Motion to Strike directed toward T-Mobile's Cross-Complaint.

9. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT FILED BY: DROUBI, NAHLA (CONTINUED FROM 3/11/26)**
FILED BY:
TENTATIVE RULING:

Cross-Complainant Nahla Droubi's motion for leave to file a second amended cross-complaint is **granted**. Droubi shall file and serve the second amended cross-complaint within 10 days of the notice of entry of this order.

The Court previously heard Droubi's motion for leave to file a second amended cross-complaint. The Wankens opposed Droubi's motion for leave to amend, arguing that the motion does not comply with California Rules of Court, rule 3.1324(a)(2)-(3) and (b). The Court agreed that this motion was not compliant with rule 3.1324.

This matter was continued to allow Droubi to file and serve a redlined version of the proposed second amended complaint showing all amendments and a declaration compliant with rule 3.1324(b). The parties were given the chance to file new opposition and reply briefs.

Droubi has now filed a declaration and a copy of the proposed second amended cross-complaint. The Court has reviewed these filings. The Wankens did not file a new opposition opposing